

IN THE DISTRICT COURT OF THE STATE OF NEVADA

RILEY SAMPLE,
Petitioner,

v.

THE STATE OF NEVADA,
Respondent.

DOCKET NO.: [TO BE CONFIRMED]

PETITION TO SEAL RECORDS OF CRIMINAL PROCEEDINGS PURSUANT TO NRS 179.2595

STATUTORY AUTHORITY

NRS 179.2595 — A person seeking to seal more than one record may petition the district court for the county, which may seal all the records within that county including justice and municipal court cases. This is a venue overlay on the conviction and non-conviction sealing sections rather than a separate remedy: each underlying record must still satisfy its own section.

NRS 179.245 — Conviction sealing. A verified criminal history from the Nevada Central Repository is a statutory attachment under NRS 179.245(2)(a). Eligibility turns on the offence category — category A through E felony, gross misdemeanour or misdemeanour — and on whether the offence is a crime of violence.

NRS 179.255 — Sealing where the proceedings did not result in a conviction. A verified criminal history from the Nevada Central Repository is a statutory attachment under NRS 179.255(3)(a).

NRS 179.285 — On sealing, the proceedings are deemed never to have occurred and civil rights are restored. NRS 179.295 allows sealed records to be reopened and NRS 179.301 allows certain persons and agencies to inspect them.

I. JURISDICTION AND VENUE

1. This Court has jurisdiction over this matter as the District Court of Clark County, State of Nevada, where the proceedings occurred.

2. Venue is proper in this Court because the criminal proceedings that are the subject of this petition occurred in Clark County, Nevada.

II. PARTIES

3. Petitioner is Riley Sample, whose address is 1234 Example Avenue, Las Vegas, NV 89101.

4. Respondent is the State of Nevada.

5. Petitioner has also been known as: Riley Q. Sample.

III. FACTS AND CASE HISTORY

6. On or about 01/15/2022, Petitioner was charged with Possession of stolen property by Las Vegas

Metropolitan Police Department.

7. The matter was assigned Docket Number [TO BE CONFIRMED].

8. On 05/01/2023, the matter was resolved with the following disposition: Dismissed.

IV. ELIGIBILITY ALLEGATIONS

9. Petitioner may be eligible for sealing on the following basis: Consolidated sealing of more than one Nevada record held within this county under NRS 179.2595, with each underlying record screened against the section that governs it — NRS 179.245 for a conviction or NRS 179.255 where the proceedings did not result in a conviction.

10. Petitioner seeks to seal more than one record of criminal proceedings, and each record identified in this Petition is held within this county.

11. Each record identified in this Petition appears on the verified criminal history from the Nevada Central Repository submitted with this Petition.

12. Petitioner states the reasons supporting sealing in the accompanying declaration; that statement is completed by Petitioner and is not supplied by any other person.

IMPORTANT: Petitioner may be eligible; this document does not guarantee eligibility or a court outcome.

V. REQUESTED RELIEF

WHEREFORE, Petitioner respectfully requests that this Court:

(a) Grant this Petition and enter an Order directing the sealing of the records of the criminal proceedings identified in this Petition that are held within this county, including justice and municipal court records in the above-captioned matter;

(b) Direct all criminal justice agencies having custody of such records to seal all records relating to this matter; and

(c) Grant such other and further relief as this Court deems just and appropriate.

VI. VERIFICATION

I, Riley Sample, declare that the statements made in this petition are true and correct to the best of my knowledge, information, and belief.

Riley Sample
1234 Example Avenue, Las Vegas, NV 89101

Date: _____

[NOTE: Date of birth and Social Security Number should be added by petitioner if required by the applicable form or local court rules.]

PROPOSED ORDER

IN THE DISTRICT COURT OF THE STATE OF NEVADA

RILEY SAMPLE v. THE STATE OF NEVADA
DOCKET NO.: [DOCKET NUMBER TO BE CONFIRMED]

[PROPOSED] ORDER

AND NOW, this _____ day of _____, 20____, upon consideration of the Petition filed herein, and any response thereto, it is hereby ORDERED and DECREED that:

The Central Repository for Nevada Records of Criminal History, the clerk of this Court, and each justice and municipal court within the county holding a record covered by this Petition, Las Vegas Metropolitan Police Department, and all other criminal justice agencies with records pertaining to this matter are hereby directed to seal all records relating to the above-captioned matter.

BY THE COURT:

J.

ATTACHMENTS

Attachments submitted with this petition:

- Verified criminal history from the Nevada Central Repository
- Affidavit or declaration in support (completed and signed by Petitioner)
- Stipulation with a separate signature line for each prosecuting agency (signatures to be obtained)
- Proposed order to seal

Prepared by petitioner using LegalEase RCAP. This is not an official court form.